

SENATE BILL 2360

By Massey

AN ACT to amend Tennessee Code Annotated, Title 47;
Title 55, Chapter 31 and Title 66, Chapter 19,
relative to motor vehicles.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 55-31-205, is amended by adding the following as a new subsection:

(c) A garagekeeper may store a motor vehicle without express written authorization for storage pursuant to subsection (a) if the garagekeeper makes a good faith attempt to acquire consent to repair in the manner provided in § 66-19-104(a)(2), and the garagekeeper sends notice of the intent to store by certified mail, return receipt requested, to the last known registered owner of the motor vehicle.

SECTION 2. Tennessee Code Annotated, Section 66-19-103, is amended by adding the following as a new subsection:

(f)

(1) A garagekeeper's failure to obtain express written authorization to store a motor vehicle under § 55-31-205(a) does not abrogate the garagekeeper's right to a lien under this section if the garagekeeper makes the good faith attempt to acquire consent and provides notice to the owner under § 55-31-205(c).

(2) A garagekeeper may enforce a lien under this section after the expiration of thirty (30) days from the date of mailing of the notice unless a return receipt from the owner is received by the garagekeeper within the thirty-day

period, and in such case, the lien may be enforced after the expiration of thirty (30) days from the date of receipt of the notice shown on the return receipt.

(3) To establish compliance with § 55-31-205(c), the garagekeeper shall submit to the department of revenue:

(A) A written record of the name of the person whom the garagekeeper attempted to notify, the date and time of the attempt, and the signature of the person who made the attempted notification; and

(B) A copy of the receipt issued by the post office with which the letter is certified, showing the name of the sender of the letter and the name and address of the person to whom the letter is addressed, and a copy of the return receipt, if received.

SECTION 3. Tennessee Code Annotated, Section 55-31-207, is amended by deleting subsection (f) and substituting:

(f)

(1) Except as provided in subdivision (f)(2), subsections (a) and (d) do not apply to a motor vehicle that was towed or stored by a garagekeeper for the purpose of repairing the motor vehicle if the garagekeeper first obtained the authorization of the owner for the repairs and the owner of the motor vehicle has been notified that the repairs have been completed.

(2) Subsections (a), (d), and (e) do not apply to a motor vehicle that was stored by a garagekeeper for the purpose of repairing the motor vehicle if, in the case of a garagekeeper who cannot obtain the authorization of the owner for the repairs, the garagekeeper complies with the good faith attempt to acquire consent and notice requirements of § 55-31-205(c).

SECTION 4. This act takes effect upon becoming a law, the public welfare requiring it.